

25VECV05155 25VECV05155

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C09%2F23%2F2026

Source SHA-256: 1d3e453715ac3eb11ce6b7b2d9e28a6494332397cad40255c1eefb043200c514

Case Number: 25VECV05155 Hearing Date: September 23, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

HOVANES

HOVO KHANBEKYAN, et al.,

Plaintiffs,

v.

FCA

US LLC

Defendant.

Case Number Department

25VECV05155 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE:

Deny

I.

BACKGROUND

Plaintiffs

Hovanes Hovo Khanbekyan and Sarkis Sako Khanbekyan (collectively, "Plaintiffs") leased a new 2022 RAM 1500 (the "Vehicle"). (Complaint ¶ 3.) The Vehicle was defective. (Complaint ¶ 10.)

On

September 11, 2025, Plaintiffs filed a complaint against Defendants FCA US LLC ("Defendant"), FAB4 LLC), and Does 1 through 30, alleging causes of action for: (1) fraud; (2) breach of implied warranty pursuant to the Magnuson-Moss Act; (3) breach of express warranty pursuant to the Magnuson-Moss Act; (4) breach of implied warranty pursuant to the Song-Beverly Act; (5) breach of express warranty pursuant to the Song-Beverly Act; (6) unfair competition; (7) false advertising; (8) negligence; and (9) strict liability.

No

notice of settlement has been filed.

On

April 23, 2026, Plaintiff filed a motion for attorneys' fees (the "Motion") and a memorandum of costs. On September 10, 2026, Defendant filed an opposition. On September 16, 2026, Plaintiff filed a reply.

II.

NOTICE

Code

of Civil Procedure section 1005, subdivision (b) requires moving papers to be filed and served at least 16 court days before the hearing. Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Plaintiff

filed the Motion with the court on April 23, 2026, but submits no proof of service to the court showing Plaintiff timely served Defendant with the Motion.

III.

LEGAL

STANDARD

California Civil Code section 1794,
subdivision (d) states:

If the buyer prevails in an action
under this section, the buyer shall be allowed by the court to recover as part
of the judgment a sum equal to the aggregate amount of costs and expenses,
including attorney's fees based on actual time expended, determined by the
court to have been reasonably incurred by the buyer in connection with the
commencement and prosecution of such action.

"The plain wording of the statute requires the trial court to
base the fee award upon actual time expended on the case, as long as such fees
are reasonably incurred – both from the standpoint of time spent and the
amount charged." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006)
144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the
fees incurred were reasonably necessary to the conduct of the litigation, and
were reasonable in amount." (Id. at pp. 817-818.) "The amount of an
attorney fee to be awarded is a matter within the sound discretion of the trial
court." (Id.
at p. 822.)

IV.

DISCUSSION

Plaintiffs

move for an order awarding Plaintiffs attorneys' fees, costs, and expenses in
the sum of \$87,300.19. This reflects \$53,468 in attorneys' fees, a 1.5
multiplier enhancement increasing the fees by \$26,734, \$885.10 in fees for
Plaintiffs' counsel's assistant, and \$6,213.19 in costs.

Plaintiffs contend they

are the prevailing parties. The motion is premature.

California Rules of

Court, rule 3.1702(b)(1), requires a motion for attorney's fees incurred through judgment to be served and filed within the time for filing a notice of appeal. That period runs from service of a notice of entry of judgment or dismissal, or, if no such notice is served, from entry of the judgment or dismissal. (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649–650.) A judgment or dismissal in favor of the party seeking fees is a predicate to a fee award.

Here, the record

contains no judgment or dismissal.

Although Plaintiffs apparently contend that the parties reached a settlement, no notice of settlement has been filed under rule 3.1385, and Plaintiffs have not submitted a declaration or settlement agreement establishing the terms of the alleged settlement, including any provision concerning attorney's fees or Plaintiffs' status as prevailing parties. The declaration is the boilerplate declaration and the same exhibits filed by Plaintiff's counsel on a regular basis. The Court therefore cannot determine on this record that Plaintiffs are entitled to an award of fees, costs, or expenses.

The

motion is DENIED WITHOUT PREJUDICE as premature and unsupported. Plaintiffs may renew the motion after entry of a judgment or dismissal, or after the action is otherwise concluded in a manner that establishes their entitlement to fee

V.

CONCLUSION

For the foregoing reasons, the Motion is denied.

September

23, 2026 Hon. Eric Harmon

Judge of

the Superior Court